

HOW DO WE TRANSMIT THIS?

ANNEX III

INFORMATION ON THE IMPOSSIBILITY OF EXECUTING AN EPOC / EPOC-PR

Under Regulation (EU) 2023/1543 of the European Parliament and of the Council ⁽¹⁾, in cases where the addressee cannot comply with its obligation to preserve the requested data under an EPOC-PR or to produce it under an EPOC, cannot respect the specified deadline or does not provide the data exhaustively, this form should be completed by the addressee and sent back to the issuing authority as well as, where a notification took place and in other cases where applicable, to the enforcing authority referred to in the EPOC, without undue delay.

Where possible, the addressee shall preserve the data requested even where additional information is needed to identify them precisely, unless the information in the EPOC/EPOC-PR is insufficient for that purpose. If clarifications by the issuing authority are needed, the addressee shall seek them, without undue delay, using this form.

SECTION A: Certificate concerned

The following information concerns:

- ☐ a European Production Order Certificate (EPOC)
- ☐ a European Preservation Order Certificate (EPOC-PR)

SECTION B: Relevant authority(ies)

Issuing authority:

File number of the issuing authority:

If applicable, validating authority:

If applicable, file number of the validating authority:

Date of issue of the EPOC/EPOC-PR:

Date of receipt of the EPOC/EPOC-PR:

If applicable, enforcing authority:

If available, file number of the enforcing authority:

SECTION C: Addressee of the EPOC/EPOC-PR

Addressee of the EPOC/EPOC-PR:

File number of the addressee:

⁽¹⁾ Regulation (EU) 2023/1543 of the European Parliament and of the Council of 12 July 2023 on European Production Orders and European Preservation Orders for electronic evidence in criminal proceedings and for the execution of custodial sentences following criminal proceedings (OJ L 191, 28.7.2023, p. 118).

6.4.4-1

SECTION D: Reasons for non-execution

(a) The EPOC/EPOC-PR cannot be executed or cannot be executed within the specified deadline for the following reason(s):

- ☐ it is incomplete IF SECTIONS A,B,E,F,G,I,J,K,L IN EPOC ARE BLANK OR SECTIONS A,B,C,D,E,F,G IN EPOC-PR ARE BLANK
- ☐ it contains manifest errors ADDRESSED TO WRONG COMPANY
- ☐ it does not contain sufficient information UNABLE TO IDENTIFY UNIQUE USER
- ☐ it does not concern data stored by or on behalf of the service provider at the time of receipt of the EPOC/EPOC-PR ALL NSU OR NOT DATA CONTROLLER
- ☐ other reasons of *de facto* impossibility due to circumstances not attributable to the addressee or the service provider at the time the EPOC/EPOC-PR was received NOT TECHNICALLY FEASIBLE
- ☐ the European Production Order/European Preservation Order has not been issued or validated by an issuing authority as specified in Article 4 of Regulation (EU) 2023/1543. NOT A VALID ISSUING AUTHORITY
- ☐ the European Production Order to obtain traffic data which are not requested for the sole purpose of identifying the user as defined in Article 3, point (10), of Regulation (EU) 2023/1543, or to obtain content data, has been issued for an offence not covered by Article 5(4) of Regulation (EU) 2023/1543. BOXES NOT CHECKED IN SECTION G
- ☐ the service is not covered by Regulation (EU) 2023/1543. → ESCALATE TO LEGAL
- ☐ the data requested are protected by immunities or privileges granted under the law of the enforcing State, or the data requested are covered by rules on the determination or limitation of criminal liability that relate to freedom of the press or freedom of expression in other media, which prevent execution of the European Production Order / European Preservation Order. SECTION E INDICATES INVESTIGATION INTO LAWYER, JOURNALIST, DOCTOR, GOVT, INTL ORG, ETC.
- ☐ compliance with the European Production Order would conflict with the applicable law of a third country. Please complete also Section E. ESCALATE TO LEGAL

ESCALATE
TO LEGAL
POLICY

ESCALATE
TO
LEGAL

(b) Please explain further the reasons for non-execution referred to in point (a), and, where necessary, indicate and explain any other reasons not listed under point (a):

.....

CONFLICT OF LAW 6.4.4-1

SECTION E: Conflicting obligations arising from the law of a third country

In the event of conflicting obligations arising from the law of a third country, please include the following information:

— title of the law(s) of the third country:

.....

— applicable statutory provision(s) and text of the relevant provision(s):

.....

— nature of the conflicting obligation, including the interest protected by the law of the third country:

☐ fundamental rights of individuals (please specify):

.....

☐ fundamental interests of the third country related to national security and defence (please specify):

.....

REASONS
FOR
REJECTION

6.4.4-2
REASONS

EXPLANATION
OF OTHER REASON

TITLE OF LAW

APPLICABLE
STATUTORY
PROVISIONS

NATURE OF
CONFLICTING
OBLIGATIONS

☐ other interests (please specify):

— explain why the law is applicable in this case:

— explain why you consider there is a conflict in this case:

— explain the link between the service provider and the third country in question:

— possible consequences for the addressee of complying with the European Production Order, including the penalties that may be incurred:

Please add any relevant additional information: **ANY OTHER RELEVANT INFORMATION**

SECTION F: Request for additional information/clarification (complete, if applicable)

Further information is required from the issuing authority for the EPOC/ EPOC-PR to be executed:

INFORMATION REQUIRED FROM ISSUING AUTHORITY

PRESERVATION STATUS

SECTION G: Preservation of data

The requested data (tick the relevant box and complete):

- ☐ are being preserved until the data are produced or until the issuing authority, or where applicable, the enforcing authority, informs that it is no longer necessary to preserve and produce data or until the necessary information is provided by the issuing authority that makes it possible to narrow down the data to be preserved/produced
- ☐ are not being preserved (this should only be the case exceptionally, e.g. if the service provider does not have the data upon receipt of the request or cannot identify the requested data sufficiently)

SECTION H: Contact details of the designated establishment/ legal representative of the service provider

Name of the designated establishment / legal representative of the service provider:

Name of the contact person:.....

Post held:

Address:

Tel. No: (country code) (area/city code)

Fax No: (country code) (area/city code)

Email:

Name of the authorised person:

Date

Signature ⁽²⁾:

⁽²⁾ If the decentralised IT system is not used, please also add an official stamp, electronic seal or equivalent authentication.